25PSCV03857 25PSCV03857

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CO%2C07%2F01%2F2026

Source SHA-256: 4edae90ff8568e401f8419ff725886b469bb865cafc8a6f0cb6740f0571cf963

Case Number: 25PSCV03857 Hearing Date: July 1, 2026 Dept: O

Tentative Ruling

Plaintiffs' Application for Entry of Default Judgment is TBD/likely granted (see two defects/concerns, infra).

Background

This case arises from the defendant's alleged harassment and defamatory conduct. Plaintiffs OSCAR ULLOA ("Plaintiff") and FRESCOSOURCE, INC. allege the following against Defendant Daniel Gomez: In December 2024, Plaintiff and Defendant entered into a "verbal agreement to share a warehouse unit and split rent while operating as separate business entities." (Complaint ¶9.) Shortly thereafter, Defendant made investments in produce through FrescoSource, but Defendant's investments resulted in losses or only marginal profits. (¶10.) Beginning in March 2025, Defendant "engaged in a pattern of harassment and intimidation against Plaintiffs and their family members spanning over six months, including late-night calls, visits to family members' homes and businesses, explicit threats, and using the legal system to extort money." (¶34.) On August 13, 2025, Defendant filed a mechanic's lien against Plaintiff's property, which Plaintiff only learned of on August 28, 2025, the date escrow was set to close for Plaintiff Ulloa's sale of the property; this delayed closing by ten days. All in all, Plaintiffs allege that they have suffered harm, including anxiety, sleep disruption, emotional distress, and economic harms associated with the disruption of their home sale and business operations in an amount no less than $110,000.

On

October 27, 2025, Plaintiffs filed suit asserting the following causes of action (COAs):

(1) SLANDER OF TITLE

(2) FRAUD

(3) FORFEITURE AND CANCELLATION

OF MECHANICS LIEN

(4) DEFAMATION

(5) INVASION OF PRIVACY

(6) STALKING

(7) VIOLATION OF THE BANE ACT

(8) INTENTIONAL INTERFERENCE

WITH PROSPECTIVE

ECONOMIC RELATIONS

(9) UNFAIR COMPETITION

(10) INTENTIONAL INFLICTION

OF EMOTIONAL DISTRESS

On
December 30, 2025, default was entered against Defendant.

On April
1, 2026, the court denied Defendant’s motion to set aside the default. (Both parties submitted on the tentative ruling.)

On
June 5, 2026, the instant request for entry of default judgment was filed.

Discussion

As set forth in the proposed order, Plaintiffs seek entry of default judgment against Defendant in the amount $138,950.80, exclusive of punitive damages. Plaintiffs also seek Cancellation of Fraudulent Mechanic's Lien and Exoneration of Mechanic's Lien Release Bond. As for the compensatory damages ($10,050.00 for general damages and $99,950.00 in special damages), the court finds that Plaintiffs have proved up their damages.

Notwithstanding, the court finds two defects with the application.

Defect #1: Frescosource May Not Obtain Injunctive Relief

First, paragraph 3 of the proposed order seeks a permanent injunction enjoining Defendant from a host of activity including, but not limited to, "[m]aking any statement about Plaintiffs OSCAR ULLOA or FRESCOSOURCE, INC." and "Contacting, calling, texting, emailing, or otherwise communicating with Plaintiffs OSCAR ULLOA and FRESCOSOURCE, INC." Framed differently, the entity Frescosource, Inc. is also seeking injunctive relief. However, a restraining order under circumstances outlined in the complaint (i.e., harassment), is limited to natural persons, not artificial entities. (See e.g., Huntingdon Life Sciences, Inc. v. Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1128, 1258 ["HLS does not have a cause of action under section 527.6, because the statute applies only to natural persons."].)

To the extent that Plaintiffs may argue Frescosource is seeking injunctive relief as an employer, the facts of this case do not rise to the level of concern in allowing employers to seek injunctive relief since the safety of Frescsource's employees is not alleged/briefed/supported. (See e.g., Scripps Health v. Marin (1999) 72 Cal.App.4th 324, 333-334 [legislature's intent is to allow employer to pursue a TRO and an injunction on behalf of its employees to prevent threats or acts of violence by either another employee or third person carried out at the workplace].) Rather, Plaintiff Ulloa emphasizes that Defendant is appearing at his home and his family members' homes; not that Defendant is harassing employees of Frescosource, Inc.

To the extent
Plaintiffs seek an injunction pursuant to CCP section 526(a), the relevancy of that statute is unclear.
(See Proposed Order p. 4:3-4.) That statute provides that "In action to obtain a judgment, restraining and preventing any illegal expenditure of, waste of, or injury to, the estate, funds, or other property of a local agency…." (emphasis added.) Here, Frescosource is not a local agency but, as identified in the complaint, as a California corporation.

Thus, the court seeks modification of the proposed order as Frescosource may not obtain injunctive relief.

Defect #2: Punitive Damages[1]

The second and final defect the court notes is that Plaintiffs seek punitive damages in an unspecified amount but they have not briefed the issue.

Any award of punitive damages must be supported by actual and meaningful evidence of the defendant's financial condition at the time of trial; the plaintiff has the burden of providing this evidence. (Farmers & Merchants Trust Co. v Vanetik (2019) 33 Cal.5th 638, 647–648.) The United States Supreme Court has specified 3 guidelines for determining whether a punitive damages award is grossly excessive and, therefore, prohibited by the due process clause: (1) The degree of reprehensibility of the defendant's misconduct; (2) The disparity between the harm the plaintiff suffered and the size of the punitive damages award; and (3) The difference between the punitive damages the jury awarded and the civil penalties authorized or imposed in comparable cases. (BMW of N. Am., Inc. v Gore (1996) 517 US 559, 574–575.) In determining the degree of reprehensibility (which is the most important of the three guidelines), the following 5 factors must be considered: (1) Whether the harm the defendant caused was physical or economic; (2) Whether the defendant's conduct showed a reckless disregard for the health and safety of others; (3) Whether the target of the conduct was financially vulnerable; (4) Whether the conduct involved repeated actions or was an isolated incident; and (5) Whether the harm was the result of intentional malice, trickery, or deceit, or mere accident. (State Farm Mut. Auto. Ins. Co. v Campbell (2003) 538 US 408, 419.)

Accordingly, should Plaintiffs seek punitive damages, the court seeks supplemental briefing on the foregoing. Should Plaintiffs not seek punitive damages, the court will enter judgment as requested.

Conclusion

Based on the foregoing, the court is inclined to enter judgment but if plaintiffs seek punitive damages, the court will continue the matter for briefing.

[1] Since this is not a personal injury nor a wrongful death case, a statement of damages need not be served upon Defendant prior to the entry of default. (See Code of Civ. Proc., section 425.11.)